Act, 1948, apply for naturalized citizenship to the Central Body, furnishing conclusive evidence.[106]

Paragraph 43[107] then sets out in detail who can make an application for naturalisation, but the one category that is excluded is someone born to two parents neither of whom are already citizens (the Rohingyas are therefore, by definition, excluded). In turn, Paragraph 58 goes to considerable length to set out the various reasons why this form of citizenship can be revoked. 'Foreigners' have no rights to citizenship under this act, reflecting their status under the old British colonial laws.

Under the 1982 legislation, the Rohingyas were denied full citizenship due to the ethnic classifications used in 1948 (when they were not designated as one of the core ethnic groups living in the new state).[108] In addition, the legal structures were left vague, with substantial amounts of administrative discretion, and their few legal rights were undermined by the regular passing of Martial Law legislation.[109] On the other hand, as discussed below, this ambiguity was used to allow the Rohingyas to participate in the 1990 elections.[110]

Denial of citizenship led to restrictions on movement and access to education, as well as the loss of land holdings. The 1974 constitutional and legal changes also saw an increase in the levels of violence by the state towards the Rohingyas, and this led to a growth in the number of refugees fleeing to Bangladesh.[111] Soon after this, the 1977 Nagamin (Dragon King) campaign was designed to identify every individual in Burma as either a citizen or a foreigner.[112] In Rakhine, this was interpreted by the Buddhist community and the army as a licence for attacks on Rohingya communities, and by 1978 over 200,000 more Rohingyas had fled to Bangladesh.[113] In turn, Bangladesh returned most of these refugees back to Burma.[114]

Military rule and the return to democracy, 1988–2008

Political unrest after the 1988 revolt and the annulled 1990 elections saw an increased deployment of the Burmese military in northern Rakhine.[115] Nonetheless, as discussed earlier, some Rohingyas had been allowed to contest the 1990 elections[116] on the basis of the 1982 citizenship laws.[117] The renewed attacks in the period 1991–2 saw 250,000 flee to Bangladesh,